IN THE CIRCUIT COURT OF GHANA HELD IN ACCRA ON JUNE 5, 2025, BEFORE HER HONOUR LAWRENCIA AWURA ABENA DARKOWAA GYAMFI, CIRCUIT JUDGE.

SUIT NO C5/150/2023

ALEX WALLAS DZIDULAH **PETITIONER**

VRS

LILY IRIS GBEVE **RESPONDENT**

JUDGMENT

i. Overview

[1] The Petitioner and the Respondent married on July 28, 2012, under Part III of the Marriages Act (1884-1985), (Cap 127) at YMCA, Adabraka-Accra. The couple cohabited briefly in North Kaneshie until the Petitioner left for the United Kingdom in 2003. There are three issues of the marriage, namely: Vanessa Kyla Etornam Dzidulah, 22 years; Valerie Keziah Edinam Dzidulah, 20 years; and Alex Worlasie Dzidulah, 15 years. On January 18, 2023, the Petitioner filed a Petition for divorce against his wife, the Respondent, seeking the following reliefs;

a. That the marriage between the parties be dissolved.

b. With two of their children being adults, and the last one, equally mature enough, they must determine for themselves where to live, but the Petitioner shall continue to provide his duties to them as a father, and with fatherly love and utmost care.
c. No order as to cost against either party.

[2] According to the Petitioner, there has been no previous court proceedings regarding their marriage. Additionally, in the Petition, the Petitioner stated that no properties were acquired by the parties during their marriage, except that the Petitioner assisted the Respondent in building a house on a plot of land she had acquired through her mother.

[3] The Petitioner contends that their marriage has broken down beyond reconciliation after several unsuccessful attempts by their families to mediate. The Petitioner further asserts that the Respondent has acted in ways that have caused him embarrassment, distress, and significant anxiety. He claims that he has completely lost affection for the Respondent and can no longer be expected to live with her happily as a husband.

[4] The Petitioner has disclosed that the Respondent's family has made several attempts to persuade her to change her behaviour in order for their differences to be resolved. Unfortunately, all such attempts have proven futile.

[5] The Petitioner indicated that when it became clear to the couple that their marriage had no future, he discussed the possibility of dissolving the marriage with the Respondent and subsequently informed the Respondent's parents of their decision.

[6] The Petitioner believes that there is nothing more to protect regarding their marriage, and it would benefit both parties to appear before the Honourable Court to dissolve their marriage so that they can move on with their lives separately.

[7] The Petitioner enumerated the particulars of unreasonable behaviour exhibited by the Respondent from the very outset of their marriage, citing issues such as lack of communication

and transparency, which threatened the survival of the marriage. However, he maintained his faith and endured for a considerable time, even while being away from the family in the United Kingdom.

[8] The Petitioner stated that the most crucial decision in their marriage, from the very beginning, was for the entire family to relocate to the United Kingdom. Both parties were very serious about this, knowing it was crucial for all of them and must not fail.

[9] As outlined in the Petition, the Petitioner noted that whenever the matter was raised, the Respondent, regrettably, provided multiple reasons for her inability to move with their children to the United Kingdom as originally intended, a move the children were eagerly anticipating. At one point, the Respondent claimed that she needed to complete her CA to enhance her Curriculum Vitae (CV) before traveling to England, leaving him with no option but to agree.

[10] The Petitioner stated that when the Respondent completed her CA and the question of the family's relocation came up again, her reason this time was a desire for one or two additional years to pursue a Master's Program in Finance offered in France, aimed at enhancing her job prospects in the UK should they move there.

[11] The Petitioner further stated that two years after completing the Master's program, the Respondent requested additional time to remain in Ghana to pursue the Wales and England ACCA. The Petitioner explained that at that point, he disagreed with the Respondent, which resulted in reduced and worsening communication between them over time to such an extent that telephone calls and text messages became rare and irregular. Most of the time, they went unanswered completely or took a very long time for the Respondent to respond.

[12] The Petitioner stated further that the Respondent provided him with very little information about the children, failed to discuss her job promotions, and even traveled outside of Accra for days without informing him.

[13] He averred that when their two daughters yearned to relocate to England, the Respondent insisted that the Petitioner take only the girls with him, without the Respondent. However, after expending a significant amount of money on their visa applications, they were denied because they could not relocate without their mother, given that the Petitioner did not have sole responsibility for them.

[14] The Petitioner further averred that the Respondent's conduct had embarrassed even their daughters and caused them anxiety and hardship, and he noted that deceit and dishonesty were the hallmarks of the Respondent. As a result, the entire family became unhappy with the situation.

[15] As indicated in the Petition, as a result of the Respondent's conduct, he strongly suspected that she was seeing another man and cheating on him, which was the reason she gave very little or no attention to him.

[16] The Petitioner explained that it did not take long before he began receiving information about the Respondent's infidelity from multiple sources, including a woman who sent voice notes to the Petitioner and alleged that the Respondent had hijacked her husband, resulting in her and her children being evicted from their marital home.

[17] As recounted by the Petitioner, when he confronted the Respondent with numerous reports of her infidelity, she did not deny it; instead, she consented to the Petitioner's suggestion to seek a divorce.

[18] The Petitioner disclosed that there had been no intimacy between them for nine years. He further disclosed that during his last three visits to Ghana since 2018, he did not stay with the Respondent.

[19] The Petitioner concludes that the Respondent has been dishonest, deceitful, and unfaithful in the marriage from very early on, and her conduct has completely eroded any affection that existed between them; therefore, he seeks to end their marriage.

ii. <u>Answer</u>

[20] The Respondent, in her answer, expressed that she was aggrieved because, despite the pressure exerted on her by the Petitioner to change her maiden name following the solemnization of their marriage in 2012, he had chosen to refer to her maiden name in this Petition, despite all the trouble and expense she endured to change her name.

[21] Regarding the Petitioner's profession and work, the Respondent claimed she knew the Petitioner had been employed in the health sector since his relocation to the United Kingdom, but could not ascertain what work he was currently doing, particularly whether his present designation as a socio-economist is indicative of his role.

[22] According to the Respondent, as a couple, they purchased two plots of land early in their marriage in Kasoa, which were under threat of being lost. She then took steps to protect them by completing a one-bedroom structure and building a dwarf wall around it with her own resources. The Petitioner's total neglect in protecting the said plot might explain why he no longer considers it to belong to him.

[23] The Respondent refuted the claim that the Petitioner made a formal complaint to anyone from either family regarding the allegations of infidelity mentioned in the Petition. According to her, those allegations were never raised, and when confronted, she was unable to provide a satisfactory answer. At best, the Petitioner had a habit of sending messages to family members, and when she challenged him with these messages and demanded that he substantiated his allegations, he backed down. The Petitioner reported her to their church elders, and they both attended such a session only once.

[24] In this instance, the Respondent acknowledged that her feelings for the Petitioner are no different, particularly in light of the unfounded accusations he had made against her.

Unlike his casual approach to ending their relationship, she expected him to do so formally, reflecting the respect due to her as his spouse, whom he had publicly celebrated with others.

[25] The Respondent states that, as a professional woman working in the demanding environment of a bank, she is a busy person. With the emergence of social media, the Petitioner hoped for constant communication, but encountered challenges in achieving it. Her decision to respond to his messages at her convenience provoked his ire, leading him to conclude that she was not communicative enough.

[26] Regarding the allegations of a lack of transparency, the Respondent questioned how the Petitioner knew so much about her to narrate in this Petition if she had been keeping whatever was happening in her life, both professionally and socially, from the Petitioner.

[27] The Respondent denied paragraph 9(ii) of the Petition and stated that, before the Petitioner left Ghana, they were newly married, had recently become parents, and their situation was not at all bad.

[28] The Respondent asserted she was well aware of how her father gave up his job in Ghana and chose to remain in England when he had the opportunity to study there. With this knowledge, it had always been the Petitioner's decision to settle in the United Kingdom, and she had no right to interfere in that decision.

[29] The Respondent further asserted that she, on an occasion, visited the Petitioner in the United Kingdom, even with the children, as some couples do. The allegation of a plan to settle in the UK was false. After nine years of living alone in the United Kingdom, when the Petitioner finally decided to solemnize their marriage, he did so with the understanding that she had made significant progress in her professional life here in Ghana, and it was not at that point that she would leave Ghana for the UK to start anew. She further explained that as a qualified accountant, the Petitioner knew her CA qualification would be irrelevant in the

United Kingdom, which was what she meant when she mentioned earlier about starting all over again.

[30] The Respondent expressed her belief that she felt her professional development, as well as her fortunes, were tied to staying in Ghana. She made that decision just as the Petitioner had, three years into their marriage, decided to move to and stay in the UK.

[31] According to the Respondent, when the Petitioner was inclined to let her two older children come over, she never objected to that decision. She provided all the necessary assistance to support them. However, their application failed not because of her lack of interest in accompanying the girls, but mainly due to the Petitioner's fault.

[32] The Respondent rejected any blame from the Petitioner for the failure of the application for the girls to be granted visas to relocate. Indeed, contrary to the assertion that her decision not to accompany the girls accounted for the refusal of their visas, it was the ample evidence of the poor records of maintenance of the children by the Petitioner, as evident in the document he attached to their application, accounted for the visa refusal since the children were going to settle with him.

[33] As mentioned by the Respondent in her answer, their children bore their refusal gallantly; they lacked nothing here in Ghana that they would have missed by not joining their father in England. The Respondent vehemently opposed the characterization that "deceit and dishonesty was the hallmark of the Respondent," claiming that it was not only malicious but also defamatory, as there was no proof to support those assertions. She asserted that both girls were currently attending university in Ghana and lacked anything beneficial that their mother could not provide.

[34] From the Respondent's perspective, any information the Petitioner needed about the children was available to him, especially given his unrestricted access to them. Concerning her professional life and related matters, since there was no mutual purpose and based on the

Petitioner's statement that his fortunes in life were linked to her joining him only in the UK (which she was not ready for), there was no common purpose; abandoning her fulfilling life in Ghana for the UK was no longer an option.

[35] The Respondent indicated that if the Petitioner were discerning enough, he would have realised that despite the meagre or no remittances from him abroad, their children were being well looked after. She had not been a burden on him. That should have given him enough clues that she was not ready to leave the comfortable life here in Ghana for the uncertainties that lay ahead, especially since the Petitioner had not secured any job for her there.

[36] In further response to the Petition, the Respondent recounted that on the few occasions when the Petitioner visited Ghana, he declined to stay at her place. It was then that it became clear to her that he had lost interest in her as a wife, leading to a natural decline in communication between them as a couple. The Petitioner's belief that their life together could only exist in the United Kingdom, contrary to her experiences in Ghana, with ample evidence demonstrating that she did not need to leave the shores of this country to provide for herself and her children, signified a clear divergence of purpose between them as a couple. Consequently, there was little common interest to discuss. The Respondent reiterated that, just as the Petitioner had no interest in her, similarly, she had no interest in him to discuss anything with, as their common interests no longer existed.

[37] The Respondent challenged the Petitioner to disclose the identity of the person who sent him the voice notes. However, the Petitioner was unable to provide the names, and therefore, did not raise the issue again. The Respondent refuted the allegations of infidelity

and demanded that the Petitioner provide strict proof, allowing the opportunity to join the said man as a respondent to the Petition.

[38] The Respondent stated in a further reply that she did not allow the Petitioner to divorce her as he wished. The Petitioner decided, twelve years into their marriage and with three children, to have a white wedding. Because of the expense and spectacle he subjected her to, with over 400 guests present, she was not willing to grant him the satisfaction of a divorce without a proper legal process.

[39] In the Respondent's opinion, getting a divorce through the court was the only way for her to recoup some of the resources she had spent needlessly, especially since by the time of the solemnization of their marriage, the Petitioner was aware that she would never move from Ghana, as she could not be guaranteed abroad the kind of life she was living here in Ghana.

[40] She articulated that, as adults who met in Ghana and got married after university, their marriage was not contingent on relocating to the United Kingdom; therefore, any decision made by either of them was based on an informed perspective.

iii. <u>Cross-Petition</u>

[41] The Respondent cross-petitioned for the reliefs as stated below:

a. A dissolution of the marriage celebrated between them on 28th July 2012.

b. An order that custody of the last-born and only son of the marriage, Alex Worlasie Dzidula, be granted to the Petitioner to have him settled in the United Kingdom.

c. In lieu of custody as above, the Petitioner shall pay maintenance of GHS 5000 per month, together with school fees, etc., for the last-born child of the marriage, Alex Worlasie Dzidula.

d. Financial compensation of £25,000 or its Ghana cedi equivalent of GHS 325,000.

iv. <u>Petitioner's Reply</u>

[42] The Petitioner replied, stating that he had long ago detected that the Respondent had presented herself to her friends, the public, and on social media as if she were a single mother. Additionally, while I was in the UK with her in 2013, when she received a female visitor delivering a parcel to be sent to Ghana, she quickly removed her wedding ring before meeting the visitor. Furthermore, the Respondent had replaced their married name, "Mr. & Mrs. Dzidulah", on an indenture covering a parcel of land owned jointly, with her maiden name, "Lily Iris Gbeve".

[43] According to the Petitioner, the Respondent was fully aware of his profession as a Socio-Economist and same is indicated on their marriage certificate, which is in the Respondent's possession.

[44] Petitioner stated in reply to paragraph 4 of the Respondent's Answer that he was indeed domiciled in the United Kingdom, but visited Ghana frequently and possessed an address in Ghana as well. More importantly, he had initiated the instant action and was determined to see it through to the end; therefore, there would be no need for an application against him to post a security deposit.

[45] The Petitioner explained that there was an acquisition of two plots of land in the early part of their marriage. However, he decided to leave it out of his Petition due to the very controversial issues generated by the Respondent regarding the land.

[46] He recounted that the controversies began when the Respondent first informed him that her mother had found some land for her to acquire in Teshie. He (the Petitioner) suggested that both of them invest in and develop the land together; however, the Respondent declined. Consequently, the Petitioner decided to acquire his plot of land and eventually purchased two plots instead, at Ofankor, near Accra. He requested that the land be registered in both their names as "Mr. & Mrs. Dzidulah", but the registration had not been completed by the time the Petitioner left for the UK.

[47] The Petitioner also mentioned that the Respondent subsequently informed him about problems concerning the land, indicating that their vendor would be assigning different plots to them. These new plots were ultimately allocated and presented to the Respondent, and he provided money for a small property to be placed on it, as well as for a dwarf wall to be erected around it.

[48] The Petitioner continued his narration that instead of preparing the land documents in their names, the Respondent asked the vendor to prepare the document solely in her maiden name, "Lily Iris Gbeve". The Petitioner stated that this situation occurred during a time when their relationship was in a state of serious distress. Then, he proposed to the Respondent that they should share the land, with each taking a plot. The Respondent consented, immediately selecting the best area and leaving the smaller property for him.

[49] As indicated in his Reply, the Petitioner stated that he told the Respondent to consider selling her portion of the land to him if she ever decided to dispose of it. However, the Respondent informed him that she would not sell the land. The Petitioner explained that, surprisingly, he learned in 2021 that the Respondent had sold her portion of the land to a certain man, who built a 3-bedroom house on the land and encroached on his portion of the land by 5 feet, as well as dug a well on it.

[50] The Petitioner disclosed that the owner or occupant of the 3-bedroom house on the Respondent's portion of the land stated he did not know the Respondent but had purchased the land from someone else. Consequently, it remains a mystery to determine the truth regarding the ownership of the 3-bedroom house on the Respondent's portion of the land.

[51] Moving on, the Petitioner admitted that he reported the Respondent to her father, mother, uncle, aunt, and the wife of her deceased uncle, all of whom were aware that he had endured enough and wanted a peaceful dissolution of their marriage so they could move on

with their private lives while taking care of their children. The Petitioner claimed that at various times, the Respondent would either agree to or object to the proposal for a peaceful dissolution of their marriage. Furthermore, the Petitioner asserted that sometime in 2016, a consensus was reached between them in a WhatsApp chat to end the marriage, which he communicated to the Respondent's parents as advised by her, so that they could bear witness to the parties' decision.

[52] The Petitioner added that on many occasions, the Respondent posted photographs with inscriptions on her social media indicating that she was a single parent. The Petitioner viewed this as a wicked act of the Respondent to torment him, while she went on her frolic to do whatever pleased her with others as a single parent, but pretended at other times that she wanted the marriage to remain. The Petitioner averred that the Respondent wanted the marriage to remain only on paper.

[53] The Petitioner maintained that the Respondent was not transparent with him during their marriage, citing several instances, including her refusal to reveal her salary to him, despite his having shared his along with all additional income. Moreover, she declined to pay tithe jointly with him, as advised and practiced by many in their church, solely because she did not want the Petitioner to know her salary.

[54] According to the Petitioner, in 2002, following the birth of their first child, the Respondent shared an investment opportunity in a palm plantation, which was facilitated by the Respondent's previous employer, the Consolidated Discount House. They agreed to invest, with each contributing GHS2,500. However, the Respondent has still not provided any updates about that investment to the Petitioner. The Petitioner added that he had repeatedly asked the Respondent for information but received no response, ultimately leading him to stop asking.

[55] The Petitioner clarified that he agreed to solemnize their marriage because it was necessary for them to obtain their marriage certificate for documentation, which would support their immigration application to relocate to the UK. It was also for the same immigration purposes that the Respondent agreed to change her maiden name to the Petitioner's last name.

[56] The Petitioner rejected the assertion that he was responsible for their two older children being denied visas to relocate to the UK. The girls were denied mainly due to the Respondent's refusal to relocate to the UK with them, which had always been part of the plan for their marriage.

[57] He pointed out that there were two main conditions for granting such a visa, which were applied for on behalf of their daughters. The conditions required that both parents must have resided in the UK, or one parent must reside in the UK, while the spouse of the parent living in the UK must also be applying with the children to relocate to the UK. The Petitioner reiterated that the Respondent's refusal to apply to relocate with the children was the reason for the visa denial.

[58] The Petitioner further explained that another necessary issue was whether he was solely responsible for the maintenance of the children, and since he was not, but the Respondent was also responsible for them, their applications were denied. He also stated that in the visa application made by the Respondent on behalf of the girls, the Respondent did not attach any evidence of the Petitioner's remittances to her for the maintenance of the children, so the impression was given that the Respondent was solely responsible for the children.

[59] The Petitioner provided further details that the refusal letter issued by the UK High Commission explained that the Home Office had observed that their daughters, along with

their mother, had visited the Petitioner in the UK on several occasions. This indicated that the girls were safe with their mother in Ghana, and the Home Office did not understand why the Respondent would be in Ghana and choose to relocate the girls to the UK. The Petitioner asserted that the Respondent deliberately withheld the High Commission's refusal letter from the girls, keeping them unaware of the true reasons for their visa denial until the Petitioner finally clarified the situation to them. The Respondent acted in this manner to avoid having the girls blame her.

[60] According to the Petitioner, when the Respondent was submitting the application at the UK High Commission, she phoned the Petitioner with a request that an extra payment of £1,000.00 for Health Insurance was required, insisting that the Petitioner must send it to her before she would submit the applications for the girls. The visa application fees, along with renting a flat for 5 months to provide evidence of the ability to accommodate their daughters, cost the Petitioner close to £15,000.00, all of which had gone down the drain, leaving the Petitioner with a huge debt to settle, solely because the Respondent had wickedly refused to cooperate with him.

[61] Therefore, it was not accurate to say that the Respondent had provided all the necessary assistance to support their daughters in relocating with the Petitioner. In fact, throughout the years of discussions, the Respondent fostered the false impression in their children that she was prepared, suggesting instead that it was the Petitioner who was responsible for the delays in their relocation to the UK. When the Respondent could no longer mislead the children, she resorted to pleading with him in their WhatsApp and telephone conversations.

[62] The Petitioner concurred with the Respondent's claim of being wealthy and self-sufficient, asserting that she did not require the support of a poor husband. For that reason, she would not leave her comfortable situation to join the Petitioner. The Petitioner expressed that the Respondent was dishonest and that she did not clearly and promptly communicate her stance on not leaving her comfortable position to be with the Petitioner in the UK.

[63] He revealed that the denial of visas to their daughters took a grievous toll on them and resulted in serious health issues for their elder daughter, for whom the Respondent had to seek psychotherapy treatment. This situation caused grave concern for both him and the Respondent, prompting discussions on alternative options for the Petitioner to reapply for visas for the girls. To the Petitioner, the denial of visas to the girls stemmed solely from the uncooperative conduct of the Respondent, which resulted in significant hardship and pain for their daughters.

[64] Next, the Petitioner claimed not to have made any malicious and defamatory publication to a third party about the Respondent. Besides, the Petitioner believed he had sufficient basis and evidence to describe the conduct of the Respondent as deceitful and dishonest, and at the appropriate time, he would provide his evidence.

[65] The Petitioner asserted that he possessed adequate evidence of the Respondent's infidelity and had come to the reluctant conclusion that their marriage had broken down beyond reconciliation due to the Respondent's unreasonable behaviour over the years and that the Respondent could not pretend otherwise.

[66] The Petitioner denied knowing that the Respondent would never move from Ghana. Throughout their marriage, it was understood that the couple would relocate to the UK, and there was evidence of extensive communication to this effect. He maintained that, at all times

before and during the initial moments of their marriage, their plan was to resettle in the UK as a family.

[67] The Petitioner lamented that all his friends and colleagues who arrived in the UK around the same time as him had settled well with their families, with their children exploring their potential and achieving their dreams. He further disclosed that they had all acquired houses back in Ghana. Some of those who knew the Petitioner sympathised with his situation, while others mocked him, saying they were tired of knowing him as the married bachelor who had been waiting indefinitely for his family to join him.

[68] The Petitioner indicated that it was unfortunate that the right decisions, which could have been made at the right time to enable their children to join him in the UK to pursue their dreams, were undermined by the Respondent's personal interests. She was unwilling to sacrifice her ambitions for the sake of their children's welfare and future.

[69] Regarding the Respondent's claim for financial compensation, the Petitioner stated that he had noticed the Respondent's request for a substantial amount of compensation in her Cross-Petition. However, in his opinion, the Respondent did not merit any financial compensation from him. If anyone deserved financial compensation, it should be him, for the reasons detailed below.

[70] Petitioner stated that before he left Ghana in 2003, he had provided post-dated cheques for six months, amounting to nearly double the monthly contribution he had been making towards the family's upkeep. He also advised the Respondent to convert his car into a taxi, which was subsequently done, to generate additional income for the family during his absence from Ghana.

[71] He added that, in less than six months after finishing a short course, he began working and sending remittances. In the first eight years, he sent an average of approximately

GHS4,000.00 to GHS5,000.00 each year to supplement the weekly income from the taxi as his contribution to the family's maintenance. Additionally, he paid the children's school fees and assisted the Respondent in constructing her house.

[72] The Petitioner also mentioned that he regularly sent money to the children on special occasions, such as their birthdays and Christmas. Additionally, when he learned that the taxi needed a new engine, he willingly sent funds for its purchase, without questioning, even though he was unaware of the taxi's income.

[73] The Petitioner stated that there was a time when the Respondent expressed a need for a new family car, specifically a 4-wheel drive, and requested his assistance in purchasing one. Despite facing financial difficulties due to high accommodation expenses and the overall cost of living, he was able to send her £4,000.00 to help with the purchase.

[74] The Petitioner also averred that just three years later, the Respondent requested money again from him to buy another car, which he was unable to provide. The Respondent decided to sell the first car and took out a loan from her workplace in addition to purchasing the new car. Later, when the Petitioner asked her how much she had sold the car for, which the Petitioner had bought for her, she stated that she was not obligated to disclose that information because the Petitioner had been unable to assist her in purchasing the second new car.

[75] The Petitioner justified that he adequately and effectively maintained their children, paying all their school fees and bills. He claimed that sometime in 2011, for instance, he paid approximately GHS20,000 for one term of school fees for the children, in addition to giving the girls GHS1,200.00 as monthly pocket money.

[76] He further justified that he provided learning tools and equipment, such as laptops, mobile phones, and a PS4, as needed, and continued to do so. For a couple of times, he paid

DSTV subscription for the children, especially their son, to watch their favourite programmes. Additionally, he bought laptops for his daughters for the first time when they reached the age of majority. The Petitioner expanded that he purchased laptops for the girls for their undergraduate studies, provided Wi-Fi and other facilities, and also did a lot of shopping for the children.

[77] The Petitioner conceded that the Respondent was in better employment than he was, as she was a banker, an accountant, an auditor, and a zonal manager with significant earnings and, perhaps, holding hidden investments. She earned more and owned properties, living comfortably, which she explained in her Answer and Cross-Petition as reasons why she would never relocate to the UK. He, on the other hand, had been in the UK for almost 20 years but had nothing to show for it. All his dreams were dashed by the Respondent's refusal to remain honest and faithful to him and to their plans.

[78] The Petitioner recounted that they had been married for almost 23 years, but he left Ghana just three years into the marriage to spend all his time in the UK preparing for his wife and children to join him – a goal the Respondent ensured was not realised. He continued that it was obvious that, apart from the brief periods they lived together, the Respondent had not rendered any extraordinary services to the Petitioner during their marriage. For instance, the Respondent could not claim that she had cooked for the Petitioner for any considerable time during their marriage, as traditionally expected.

[79] He argued that, in light of all that had been explained in his pleadings, the Respondent did not deserve any financial compensation from him. Instead, he, the Petitioner, was the one who deserved financial compensation for the physiological and emotional trauma, shame, and humiliation to which the Respondent had subjected him through her lack of transparency, dishonesty, and deceptive conduct during almost 23 years of their marriage.

[80] He concluded that the Respondent was not entitled to any financial compensation. However, the Petitioner would continue to take excellent care of their three children's educational needs.

v. Proceedings

[81] The parties informed the court that they had reached a settlement on the ancillary reliefs. As part of these terms, they agreed that their marriage had broken down beyond reconciliation and should be dissolved. Consequently, they filed the terms of settlement on 13th March 2025.

[82] Being a Matrimonial Cause, the Court was duty bound, regardless of the Terms of Settlement filed and in accordance with Sections 2 (2) and 2 (3) of the Matrimonial Causes Act, 1971 (Act 367), to inquire into the marriage of the parties, by hearing their testimony, for a determination, as to whether or not, the marriage celebrated between the Parties, had broken down beyond reconciliation.

vi. Legal Issue

[83] Whether the marriage between the Petitioner and the Respondent has broken down beyond reconciliation.

vii. The Law on Divorce

[84] In Ghana, when a couple decides to marry under the Ordinance, they can only obtain a divorce through the courts. The court must inquire as far as is reasonable into the reasons for the divorce and may either grant or refuse to decree a divorce after hearing. The grounds on which a divorce can be obtained from the courts are clearly stated under the Matrimonial Causes Act, 1971 (Act 367).

[85] Under the **Matrimonial Causes Act, 1971 (Act 367)**, the sole ground for granting a divorce petition is that the marriage has broken down beyond reconciliation. To prove that the

marriage has broken down beyond reconciliation, the Petitioner is required to establish at least one of the six facts set out in Section 2(1) of Act 367 such as adultery; unreasonable behaviour; desertion for two years; consent of both parties where they have not lived together as husband and wife for two years; not having lived together as husband and wife for five years; and, finally, inability to reconcile differences after diligent effort.

[86] It is pertinent to note that under Section 2(3) of Act 367, a court shall refuse to grant a Petition for Divorce notwithstanding the fact that a Petitioner has proven any of the facts in Section 2(1) if there is a reasonable possibility of reconciliation. In the case *of* ***Adjetey v. Adjetey [1973] 1 GLR 216***, the court held in holding 2 that:

"On a proper construction of section 2 (3) of the Matrimonial Causes Act, 1971 (Act 367), the court could still refuse to grant a decree even where one or more of the facts set out in section 2 (1) had been established. It was therefore incumbent upon a court hearing a divorce petition to carefully consider all the evidence before it; for a mere assertion by one of the parties that the marriage had broken down beyond reconciliation would not be enough".

[87] Before the Petitioner is given the opportunity to prove his case, the Court, in encouraging reconciliation as far as may be practicable, Section 8 enjoins the Petitioner or his counsel, to inform the court of all attempts made to effect reconciliation. In the instant case, when the court inquired about the parties' attempts at reconciliation, the Petitioner answered that he had made efforts to resolve their issues by engaging the family of the Respondent, specifically her father and uncle, but they were unable to assist in resolving the issues. He further added that he approached the Respondent with the aim of resolving the problem, but they were unable to reach a mutual understanding.

[88] The Respondent, on the other hand, stated that she had given the Petitioner assurances to allow time to heal his wounds, yet he was not ready to move past whatever was troubling him, leading her to agree to dissolve the marriage.

[89] Before I consider the above issue, I will discuss the standard of proof in divorce cases. It is important to clarify that divorce is civil in nature. Like all civil cases, divorce requires proof on a balance or preponderance of probabilities. Per Section 12 (1) and (2) of the Evidence Act (1975), Act 323:

"Except as otherwise provided by law, the burden of persuasion requires proof by a preponderance of the probabilities".

Section 14 of Act 323 goes on further to provide that unless and until it is shifted, a Party has the burden of persuasion regarding each fact, the existence or non-existence of which is essential to the claim or defence he is asserting. This burden of persuasion is the obligation of a Party to establish a requisite degree of belief on a balance of probabilities concerning the existence or non-existence of a fact in the mind of the tribunal of fact or the Court. In divorce cases, just as in all civil cases, the degree of proof required by law is that of a balance or preponderance of probabilities. See the case of ***Adwubeng v. Domfeh [1996-97] SCGLR 660.***

[90] The Petitioner in the instant Petition has set out to prove fact **2(1)(b)**, namely, ***"that the respondent has behaved in a way that the Petitioner cannot reasonably be expected to live with the respondent"***. The Respondent Cross-Petitioner also set out to prove fact **2(1)(b)**.

[91] To succeed under **Section 2(1) (b)**, the Petitioner must prove the conduct constituting the unreasonable behaviour on the part of the Respondent, and the fact that the Petitioner cannot reasonably be expected to live with the Respondent as a result of the bad behaviour. In the case of ***Hughes v. Hughes [1973] 2 GLR 342 @ 345,*** Sarkodee J. held that;

"To succeed, the petitioner must show that the respondent's conduct reached a certain degree of severity. Her conduct must be such that no reasonable person would tolerate or consider that the complainant should be called on to endure".

[92] As proof of the above ground, Hayfron Benjamin J (as he then was) held in the case of ***Mensah v. Mensah (1972] 2 G.L.R. 198*** that *"In determining whether a husband has behaved in such*

a way as to make it unreasonable to expect a wife to live with him, the court must consider all circumstances constituting such behaviour including the history of the marriage. It is always a question of fact. The conduct complained of must be grave and weighty, and mere trivialities will not suffice for ***Act 367*** *is not a Casanova's Charter. The test is objective".*

[93] The Respondent having denied the allegation of unreasonable behaviour, the onus was on the Petitioner to lead cogent and admissible evidence for the court to make a determination in his favour that, indeed, the Respondent had behaved in such a way that he could not reasonably be expected to live with her. It is a trite learning that where the other Party denies a Party's averment, he does not prove it by merely mounting the witness box and repeating the averments on oath.

In the case of ***Majolagbe v. Larbi & Ors. (1959) GLR 190*** **at page 192** held that: *"Proof in law is the establishment of facts by proper legal means. Where a party makes an averment capable of proof in some positive way eg, by producing documents, description of things, reference to other facts, instances or circumstances and his averment is denied, he does not prove it by merely going into the witness box and repeating the averment on oath or having it repeated on oath by his witnesses. He proves it by producing other evidence of facts and circumstances, from which the court can be satisfied that what he avers is true".* See also the case of ***Adjetey Agosu vrs. Kotey & Ors [2003-2004] SCGLR 420***.

[94] The Petitioner, in his evidence-in-chief, repeated all his averments in the Petition, under oath, stating that the marriage had broken down beyond reconciliation after several attempts by their families to help them resolve their differences, but without success.

[95] He added that in 2002, after they had their first child, the Respondent informed him about an investment opportunity in a palm plantation, facilitated by the Respondent's former workplace, the Consolidated Discount House. The two of them decided to invest, each contributing GHS 2,500. However, the Respondent failed to update him on the status of that investment, despite his repeated requests. Consequently, he stopped asking.

[96] Although the Petitioner asserted, the Respondent presented a Cross-Petition, so they both bore the burden of proving their claims. The Respondent also cross-petitioned and sought to prove fact 2(1)(b). Gbadegbe JSC in the case of ***Sagoe v. SSNIT [2011] 30 GMJ 133; [2012] 52 GMJ 47 at 58*** held: *"The party who asserts the affirmative of an issue has the incidence of the legal burden…"*

See the case of ***Gregory v. Tandoh IV & Hanson [2010] SCGLR 971.***

[97] The Respondent, on the other hand, testified that three (3) years into their marriage, the Petitioner decided to relocate to the UK in pursuit of his dreams, and disclosed that he secured a job there before relocating.

[98] She clarified that the idea of relocating to the UK as a family arose later in the marriage, not at an earlier stage. According to her, the Petitioner considered that idea when he realised that relocating with him would give him access to certain incentives. However, she told the Petitioner that she did not want to move abroad without the assurance that she would not be left stranded, especially since her father spent most of his life abroad without anything to show for it.

[99] The Respondent further testified that she informed the Petitioner that, with her qualifications as a chartered accountant in Ghana and the ICA qualification—which is not recognized in the UK—he should be prepared to pay her fees in foreign currency to study and qualify under any of the chartered accounting institutes, in order to remain relevant. He never agreed to that suggestion, and since she was already gainfully employed, she did not see the need to worry about traveling with him so late after their marriage. Consequently, she decided against moving to the UK, as she felt the Petitioner wanted to use her.

[100] The Respondent recounted that, over time, the Petitioner began to feel insecure, which caused significant mistrust between them. As a result, the Petitioner would not stay in their matrimonial home while in Ghana, and they gradually drifted apart.

[101] The Respondent expressed her frustration regarding the Petitioner blaming her for the denial of visas for their two daughters. According to the Respondent, the Petitioner conveyed his intention to improve his credit and requested her to transfer funds to him to help establish his account in the United Kingdom. That was meant to enable him to obtain visas for their daughters, whom he wanted to join him in the UK. However, she did not find the proposal reasonable and decided not to proceed with it. She asserted that she was not at fault for the visa denials of their daughters; instead, the responsibility lay with the Petitioner, who had failed to build sufficient credit to assure UK authorities regarding the presence of multiple dependents.

[102] The Respondent explained that her primary concern was with their youngest child, a senior high school student. She clarified that supporting the boy was quite costly, but the Petitioner seemed not to understand that the amount he proposed would not be enough for his upkeep, even during this phase of free senior high school. She had her lawyer send a list of the monthly expenses for a student at a school like Presec-Legon to his lawyer; therefore, the GHS 5,000 she mentioned was not even sufficient, although he thought it was too much for him to pay.

[103] According to her, she has been housing all the children and has been responsible for their general maintenance, utilities, food, transportation, medical expenses not covered by her office, clothing, and airtime/data for phone calls, as well as DSTV subscriptions when the Petitioner fails to pay for them. She mentioned that in 2023, she purchased a laptop for their older daughter after all efforts to convince her father to replace the one she had used for three and a half years, which had been repaired twice, had failed.

[104] The Respondent strongly argued that the Petitioner should pay her financial compensation because he forced them to have a wedding in front of about 400 guests, only to later suggest they divorce discreetly. She also admitted that the Petitioner had initiated this case and stated she was not opposed to the divorce, as they had been a couple in name only

for quite some time. She reaffirmed her readiness to proceed with the divorce and requested that the court grant her Cross-Petition.

viii. Analysis

[105] Based on the evidence before the Court, the Petitioner failed to prove the allegation of infidelity against the Respondent as outlined in paragraphs 9 (xii), (xiv), and (xv) of his Petition, due to insufficient supporting evidence. However, regarding the claim of unreasonable behaviour for refusing to relocate to the UK to join her husband (the Petitioner), the Respondent admitted her refusal to move, which is a key factor for the Divorce Petition. The Petitioner has demonstrated that the Respondent indeed refused to relocate to the UK to join him, which, according to him, subjected him to ridicule among his fellow travelers. In paragraph 6 of her evidence-in-chief, the Respondent stated the following:

"…Consequently, I decided against moving to the UK as I felt he wanted to use me".

Also, in paragraph 19 of her Answer, she stated as follows:

"As regards her professional life and other such related matters, seeing that there was no mutuality of purpose and from the Petitioner's own saying that his fortunes in life were tied with her joining him only in the UK (which she was not ready for), there was no commonality of purpose and as abandoning her satisfying life here in Ghana for the UK was now out of the question".

[106] The evidence presented by the Parties shows that differences exist between the Petitioner and Respondent, and from all indications, they have taken entrenched positions, evidencing a lack of willingness to reconcile their differences. Furthermore, it is clear that the Parties have experienced several disagreements, and the family's efforts to help them reconcile these differences have proven futile. They also agree that despite their persistent attempts at settlement, they have been unable to reconcile their differences within the scope and purpose of section 2(1)(f) of Act 367. The Respondent in her evidence-in-chief, stated in paragraph 9 as follows:

"The Petitioner decided to bring the instant action, and I am not opposed to the divorce. After all, we have been a couple only in name for some time now".

[107] Also, during the trial, the Respondent, when asked by the court to detail the efforts made to settle their marital issues, explained as follows:

"Your ladyship, in my case, it was mainly engagements with Mr. Wallas Dzidulah and giving him assurances to let time heal the wounds, but it appeared he was not ready to go over that, and so, I just accepted to let the marriage be dissolved".

[108] The Petitioner mentioned in paragraph 24 of his evidence-in-chief that:

"There is nothing more about our marriage to protect, and it is in the interest of both of us to come to the Honourable Court to have the marriage annulled orderly, in order for us to move on with our lives separately".

During the trial, he additionally recounted as follows:

"We made a number of efforts to resolve our problems, but the problems were not solved. I tried to involve the family of the Respondent, Iris, by talking to her family, father, and uncle, but we were unable to resolve the issues at stake. I can also add that I made several attempts to get the matter resolved by engaging Iris in talks around the problem, but there was no common understanding".

[109] In the case of ***Mensah v. Mensah [1976] 2 GLR 198***, the Court held in holding 2 that *"in seeking to prove failure to reconcile differences, differences must be distinguished from disputes. The differences must be between spouses. They must be such as to make it impossible for the marriage to subsist."* The court further held at page 207 that:

"The question then arises whether there has been any diligent efforts to resolve these differences. The Act is silent on who should make the diligent effort; should it be the Petitioner, the Respondent, or both, or can it even be the children, the church, or other third parties? I am of the view that all that is required

under the section is that a genuine effort should have been made by someone. Who made the effort is, I think, not very relevant, but the effort must have been unsuccessful".

[110] Admittedly, in every marriage, it is the parties involved who decide whether to continue. That is why divorce matters are in personam. They alone can assess how comfortable, or not, their union is. As the adage goes, "Only the wearer knows where it pinches". Human dispositions vary, so it would be oppressive to expect someone to endure certain issues simply because others can. By extension, some parties work through the inevitable wear and tear of marriage over time; others see it as the final straw and feel they must leave. Neither party intends to continue the marriage they entered into on July 28, 2012, and all efforts to reconcile them have failed.

To borrow the words of Amissah J.A., in the case of ***Knudsen v. Knudsen [1976] 1 GLR 204***, *"if a man comes to court saying that his marriage has reached a stage that he "cannot reasonably be expected to live" with his wife any more, should a court say to him oh yes you can?''.*

[111] In this case, it is not only the Petitioner who does not want to continue with the marriage; the Respondent has also indicated that she is no longer interested in the union. Clearly, the parties have taken entrenched positions, with the Petitioner insisting on his family in Ghana relocating to the UK to live with him, and the Respondent, on the other hand, refusing to relocate to the UK to join her husband, as she has chosen financial security in Ghana over relocating to the UK permanently. There is no middle ground, and neither party is willing to compromise. Further, in her Answer to the Petition, the Respondent disclosed that on the few occasions the Petitioner visited Ghana, he refused to stay at her place, which led to a natural decline in communication between them. Interestingly, the Petitioner admitted that during his last three visits to Ghana since 2018, he did not stay with the Respondent under the same roof. He also pointed out that, as a couple, they had not engaged in intimate relations for the past nine years. In my considered opinion, this is a very troubled marriage. Therefore, the

Court should not force the parties to remain together in a union they no longer wish to pursue.

[112] When the Court adjourned proceedings for the trial to commence, the parties settled the ancillary issues and agreed on the dissolution of the marriage. As a result, at the trial and in line with their settlement, neither lawyer conducted rigorous cross-examination, since the Parties had agreed that, due to irreconcilable differences, the marriage should be dissolved.

ix. <u>Conclusion</u>

[113] On the totality of the evidence presented, I find that the marriage between the Petitioner and the Respondent has broken down beyond reconciliation on account of irreconcilable differences. I therefore grant the Petition and the Cross-Petition for divorce and enter judgment as follows;

a. I hereby grant a decree for the dissolution of the ordinance marriage CAP 127 between the Petitioner and Respondent, celebrated on 28th July 2012, at the YWCA, Adabraka-Accra.

b. The Parties shall present the original copy of the marriage certificate (No. RGM 1903) for cancellation by the Court.

c. The Terms of Settlement dated 11th February 2025, and filed at the Registry of this Court on 13th March 2025, is hereby adopted as consent judgment on the ancillary reliefs for the Parties.

d. No order as to costs.

H/H LAWRENCIA A.A.D. GYAMFI

(CIRCUIT COURT JUDGE)

Eric Delanyo Alifo for the Petitioner: Present

Lily Iris Gbeve (Respondent)- Present